

Florida Medmal Whitepaper

AI Medical Malpractice Intake in Florida: Navigating Pre-Suit Requirements and Damage Caps

****State:**** Florida

****Primary Statutes:**** Fla. Stat. §§ 766.101-766.212

****SOL:**** 2 years

****Damage Caps:**** \$500,000/\$1,000,000

****Fault Doctrine:**** Pure comparative fault

#Executive Summary

Florida's medical malpractice landscape is one of the most procedurally complex in the nation. With a mandatory pre-suit investigation period, strict notice-of-intent requirements, and damage caps that vary by provider type, Florida law firms face unique challenges in screening and qualifying med mal leads. This whitepaper examines how AI-powered intake and merit review is transforming case evaluation for Florida plaintiff firms.

#The Florida MedMal Landscape

##Statute of Limitations and Repose

Florida applies a 2-year statute of limitations for medical malpractice actions, measured from the date the incident is discovered (or should have been discovered with reasonable diligence). A 4-year statute of repose applies, with limited exceptions for fraud, concealment, or foreign objects left in the body.

##Pre-Suit Investigation Requirements

Florida law mandates a comprehensive pre-suit investigation before filing any medical malpractice lawsuit. Key requirements include:

- ****90-Day Notice of Intent:**** Potential claimants must serve a notice of intent to initiate litigation on each prospective defendant at least 90 days before filing.
- ****Pre-Suit Screening:**** The claimant must obtain a verified opinion from a medical expert that there is reasonable grounds for the claim.
- ****Mandatory Waiting Period:**** No suit may be filed until the 90-day notice period expires, unless the defendant rejects the claim earlier.
- ****Presuit Arbitration:**** In certain circumstances, defendants may request presuit arbitration.

##Damage Caps

Florida imposes structured caps on non-economic damages:

- ****Practitioners:**** \$500,000 per claimant
- ****Non-practitioner defendants (hospitals):**** \$750,000 per claimant
- ****Catastrophic injuries:**** Up to \$1,000,000 per claimant

These caps make it essential for plaintiff firms to accurately assess case value early - before investing in expensive expert review and litigation costs.

#How LexiFlow Addresses Florida's Unique Challenges

##Pre-Suit Compliance Automation

LexiFlow's AI intake system is trained on Florida's pre-suit requirements. When a potential med mal case is identified, the system automatically:

- 1. Flags the notice-of-intent deadline based on the date of incident
- 2. Generates a preliminary merit report suitable for the presuit expert opinion requirement
- 3. Tracks the 90-day timeline and alerts the firm when deadlines approach
- 4. Documents the screening process for compliance purposes

##Damage Cap Analysis

MeritScan assesses case value against Florida's damage caps, ensuring firms understand the ceiling on non-economic damages before accepting a case. This prevents over-investment in cases where caps significantly limit recovery.

##Comparative Fault Adjustments

Florida's pure comparative fault system means a plaintiff can recover even if 99% at fault (reduced proportionally). LexiFlow's qualification scoring incorporates this standard, flagging cases with significant plaintiff fault rather than automatically disqualifying them.

#ROI for Florida Firms

Metric	Manual Process	LexiFlow AI
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Pre-suit screening time	2-3 weeks	3 minutes
Cost per case screened	\$1,200-\$1,800	\$75-\$150
Notice-of-intent deadline compliance	Manual tracking	Automated alerts
Annual cost (40 cases/month)	\$70,000	\$3,000-\$6,000

#Conclusion

Florida's complex pre-suit procedures and damage caps make accurate early case assessment critical. AI-powered intake and merit review gives Florida plaintiff firms a decisive advantage: faster case screening, automated compliance, and better-informed acceptance decisions - all at a fraction of the cost.

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